

Court No. - 2

Case :- WRIT - C No. - 2761 of 2022

Petitioner :- Dinesh Prasad

Respondent :- State Of U.P.Thru.Prin.Secy.Dep.Of Energy And Others

Counsel for Petitioner :- Atul Kumar Singh

Counsel for Respondent :- C.S.C.,Amit Sharma

Hon'ble Devendra Kumar Upadhyaya,J.

Hon'ble Brij Raj Singh,J.

Heard learned counsel for the petitioner, learned State Counsel and Sri Amit Sharma, learned counsel representing the Madhyanchal Vidyut Vitran Nigam Ltd.

By means of this petition, a prayer has been made for quashing the writ of demand issued by the Tahsil authorities for realization of a sum of Rs. 10,48,504/- plus certain other charges. The said writ of demand has been issued against the petitioner on 12.4.2022 in pursuance to the recovery certificate sent by the Executive Engineer to the District Magistrate on account of the fact the petitioner failed to make deposit in terms of the demand notice dated 27.1.2021.

Prior to filing this petition, the petitioner had instituted Writ Petition No. 31399 MB of 2007 which was disposed of with liberty to the petitioner to approach the authority concerned under clause 6.5 of U.P. Electricity Supply Code, 2006. The petitioner has also filed Original Suit No. 66 of 2021 before the court of Civil Judge (Senior Division) Hardoi seeking a prayer for injunction restraining the electricity department not to press for recovery of the demand made in the demand notice dated 27.1.2021.

What we notice from the aforementioned facts is that the petitioner has already approached the civil court seeking injunction in respect of the demand notice and as such he cannot be permitted to institute two parallel proceedings, one by filing the suit and the other by instituting these proceedings under Article 226 of the Constitution of India, for the same relief.

Accordingly, we are not inclined to entertain this writ petition which is hereby **dismissed**.

Order Date :- 16.5.2022

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